

Subject :- **Arrest, detention etc. of Members or Parliament/MLAs/MLCs - Intimation thereof to Speaker of Lok Sabha/Chairman of Rajya Sabha & Speakers of State Legislative Assemblies.**

1. Introduction

A case has come to notice in which a Member of Parliament was formally arrested and released on bail on 9.2.88 but intimation regarding the arrest/release of the Hon'ble M.P. was sent to Speaker, Lok Sabha on 14.9.88, i.e. after a lapse of over seven months. The Govt. of India have taken a serious view of this lapse on the part of the police officer concerned.

**II. Intimation
when to whom
& how to be
sent**

2. Instructions have already been issued from time to time that as and when a Member of Parliament (Lok Sabha/Rajya Sabha) Legislative Assembly or Legislative Council is arrested/detained, convicted, released whether on bail or on completion of his term, or due to any other reasons, or transferred from one place of detention to another intimation should be sent to the speaker of Lok Sabha/Chairman of Rajya Sabha/Speaker of Legislative Assembly/Council at the earliest i.e. by telegram/wireless, teleprinter message followed by a formal written communication in the proforma given in the Third Schedule of the Rules of Procedure and conduct of business in Lok Sabha/Legislative Assembly, as the case may be. Such intimations if sent by Police to the Speaker of Lok Sabha/Chairman of Rajya Sabha/Speaker of State Legislative Assembly/Council should be sent by a Police Officer not below the rank of Dy. Commissioner of Police. A copy of such a communication shall invariably be endorsed to Jt. Secretary (Home) Delhi Admn., Addl.C.P. concerned & DCP/HQ concerned.

3. When a Member of Parliament or State Legislative Assembly/Council is arrested and detained under any law providing for preventive detention, the concerned authorities should, besides sending immediate information to the Speaker of Lok Sabha/Chairman of Rajya Sabha, Speaker of State Legislative Assembly/Council regarding the arrest/detention of the MPs/MLAs/MLCs together with reasons for arrest/detention, send a copy of the detailed grounds to the Speaker/Chairman, simultaneously, when these grounds are furnished to the detenu under the relevant law. When additional charges are levelled against an MP/MLA/MLC, already under detention/arrest intimation in this regard, should also be sent to the Speaker Lok Sabha/Chairman Rajya Sabha, Speaker of Legislative Assembly/Council Similarly, intimation is also required to be sent when the nature of the custody changes.

4. The first intimation by telegram or by wireless/teleprinter message should contain essential information, namely in the case of an arrest, the date, time and place of arrest, relevant provisions of law under which the arrest was made, the authority which ordered

5. It is not merely arrest under law in respect of which intimation has to be sent to Speaker/Chairman. Intimation has also to be sent in cases where an MP/MLA/MLC is subjected to any kind of restrain or detention by the police, which may not be within the strict legal meaning of the term "arrest".

6. When an MP/MLA/MLC surrenders himself before a court and he is taken into custody of the court, intimation to the Speaker of Lok Sabha/Chairman of Rajya Sabha/Speaker or State Legislative Assembly/Council should be sent by the court concerned.

7. The communication addressed to the Speaker of Lok Sabha/Chairman of Rajya Sabha/Speaker of State Legislative Assembly/Council should not be sent on cyclostyled form with blanks filled, but should be neatly typed and signed by the officer concerned. The name of the MP/MLAs/MLCs should be spelt correctly in the communication.

8. Questions of privilege are raised when an MP/MLA/MLC is arrested. In all matters connected with the arrest, detention, etc. of an MP/MLA/MLC the concerned authorities should keep this carefully in view. Article 105, Clause(3) of the Constitution provides that privileges of MPs/MLAs/MLCs shall be such, as may, from time to time, be defined by Parliament/Assembly, by law and until so defined shall be these of the members of the House of Commons of Parliament of the United Kingdom. Our Parliament has not enacted any law so far. In respect of the privileges of MPs in the United Kingdom, the Standard work is May's Parliamentary practice.

9. Copies of articles 105 of the Constitution and Rules 222-A, 222-B, 222-C, with second schedule of the Rajya Sabha procedure and Rule 229, 230, 233 and of the third schedule of the Lok Sabha Procedure are enclosed.

10. In case of arrest/detention etc. of members of Metropolitan Council in Delhi, intimations are to be sent to the Chairman of Metropolitan Council and in case of arrest/detention of Municipal Councillor, intimation to the Mayor, MCD Delhi direct in the same manner.

11. This supersedes S.O.No.162 issued vide No.10258-410/C&T. AC.II, dt.29.5.85 and previous instructions on the subject.

Sd/-
(VIJAY KARAN)
COMMISSIONER OF POLICE :
DELHI.

No. 38041-38300/C&T.AC.II, dated Delhi, the 13/12/88.

EXTRACTS FROM THE CONSTITUTION OF INDIA

Powers, Privileges and Immunities of Parliament and its Members.

105(1) Subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament, there shall be freedom of speech in Parliament.

Powers,
Privileges,
etc. of the
Houses
of Parliament

or any committee thereof, and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament of any report, paper, votes or proceedings.

thereof.

(453)

(3) In other respects, the powers privileges and immunities of each House of Parliament, and of the members and the committees of a each House, shall be such as may from time to time be defined by Parliament by law, and until so defined, shall be those of the House of Commons of the Parliament of the United Kingdom, and of its members and committees, at the commencement of this Constitution.

(4) The provisions of clauses (1) (2) and (3) shall apply in relation to persons who by virtue of this Constitution have the right to speak in and otherwise to take part in the proceedings of a House of Parliament or any committee thereof as they apply in relation to members of Parliament.

EXTRACTS FROM ISR

229. When a member is arrested on a criminal charge or for a criminal offence or is sentenced to imprisonment by a court or is detained under an executive order, the committing judge, magistrate or executive authority, as the case may be, shall immediately intimate such fact to the speaker indicating the reasons for the arrest, detention or conviction, as the case may be, as also the place of detention or imprisonment of the member in the appropriate form set out in the Third Schedule.

Intimation to Speaker by Magistrate of arrest detention etc. of a member.

230. When a member is arrested and after conviction released on bail pending an appeal or otherwise released, such fact shall also be intimated to the Speaker by the authority concerned in the appropriate form set out in the Third Schedule.

Intimation to Speaker on release of a member.

232. No arrest shall be made within the precincts of the House without obtaining the permission of the Speaker.

Arrests within the precincts of House.

233. A legal process, civil or criminal, shall not be served within the precincts of the House without obtaining the permission of the Speaker.

CHAPTER XXA RULES 222-A to 222-C (NEW)

40. After Chapter XX of the following new Chapter XXA be inserted namely :-

CHAPTER XXA

INTIMATION TO CHAIRMAN ABOUT ARREST, DETENTION ETC. AND RELEASE OF A MEMBER.

222-A Intimation regarding arrest, detention etc. of Member:

When a member is arrested on a criminal charges or for a criminal offence or is sentenced to imprisonment by a court or is detained under an executive, order, the committing Judge, magistrate, or executive authority, as the case may be, shall immediately intimate such fact to the Chairman indicating the reasons for the

222-B Intimation regarding release of member.

When a member is arrested and after conviction released on bail pending an appeal or is otherwise released, such fact shall also be intimated to the Chairman by the authority concerned in the appropriate form set out in the Second Schedule.

222-C Treatment of communications regarding arrest detention release etc.

As soon as may be the Chairman shall, after he has received a communication referred to in rule 222-A or rule 222-B, read it out to the Council if sitting or if the Council is not sitting, direct that it may be published in the Bulletin for the information of the members.

Provided that if the intimation of the release of a member either on bail or by discharge on appeal is received before the Council has been informed of the original arrest, the fact of his arrest or his subsequent release or discharge may not be intimated to the Council by the Chairman.

Provided further that if a member has started attending the Council before it has been informed of his release the Chairman may not read it out to the Council but direct that it may be published in the Bulletin for the information of the members.

SECOND SCHEDULE

(See Rules 222A, 222B, and 222C)

**Book of intimation regarding arrest, detention conviction
or release as the case may be of a Member.**

Place _____

Date _____

The Chairman,
Rajya Sabha,
New Delhi.

Sir,

I have the honour to inform you that I have found it my duty in the exercise of my powers conferred under section _____ of the _____ (Act) to direct that Shri _____ Member of Rajya Sabha be arrested/detained for _____ (reasons for the arrest or detention, as the case may be).

B

I have the honour to inform you that Shri _____ Member of the Rajya Sabha was tried at the _____ Court before me on a charge (or charges of _____ reasons for the conviction).

(His application for leave to appeal to * _____
is pending consideration).

453

* Name of the Court.

C

I have the honour to inform you that Shri _____
Member of the Rajya Sabha, who was arrested/detained/convicted
on _____ (date) for _____ (reasons for arrest/
detention/conviction) was released on _____ (date)
on _____ (grounds for release).

Yours faithfully,

(Judge Magistrate of Executive
Authority).

K.K. Chopra
for SECRETARY GENERAL

THIRD SCHEDULE
(Sec. rules 229 & 230)

Form of communication regarding arrest, detention conviction or
release as the case may be of a member.

Place _____

Date _____

To,
The Speaker
Lok Sabha, New Delhi.

Dear Mr. SPEAKER 'A'

I have the honour to inform you that I have found it my
duty in the exercise of my powers under section _____
of the _____ (Act) to direct that Shri _____
Member of the Lok Sabha be arrested for _____

detained
(reasons for the arrest of detention, as the case
may Shri _____ M.P. was accordingly
arrested _____ taken into custody at _____
(time) On _____ (date and is at present lodged
in the _____ Jail _____ (Place.)

'B'

I have the honour to inform you that Shri _____
Member of the Lok Sabha was tried at the _____ court
before me on a charge (a charges of the _____ (reasons
for the conviction.)

On _____ (date) after a trial lasting for
_____ days I found him guilty of _____ and
sentenced him in imprisonment for _____ (period).

Name of the Court.

'C'

I have the honour to inform you that Shri _____
member of the Lok Sabha, who was arrested/detained/convicted on
_____ (date), for _____ (reasons for arrest/
detention/conviction) was released on _____ (date) on _____
(grounds) for released.

Yours faithfully,